

// commercial contract · collective programme

# Founding Partner Agreement

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# Collective Partner Agreement

The Body Recode Collective Draft v0.1 — For legal review only. Not for execution.

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## PARTIES

**Body Recode Pty Ltd** ACN [ ] of [Brisbane address — to be confirmed], Queensland, Australia (**Body Recode**)

*[ENTITY NOTE: Body Recode currently operates as **Kade Dunstone, sole trader, trading as Body Recode** (ABN 90 535 525 708). There is no Pty Ltd yet. Entity + execution to be confirmed — see the cover note threshold question on incorporation.]*

**[Partner legal entity name]** ACN [ ] of [address], Australia (**Partner**)

*[ENTITY NOTE: Many partners will be sole traders or trusts, not proprietary companies. Party block + execution to be adapted per partner.]*

Each a **Party** and together the **Parties**.

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## 01 BACKGROUND

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A. Body Recode operates a proprietary interpretation engine and coaching platform. The engine reads a client's biological, physiological, and behavioural state and produces training, nutrition, and recovery direction. The platform sits on top of the engine and is where a coach delivers programs to clients.

B. Body Recode has decided to license the platform to allied coaches under **The Body Recode Collective** — a group of coaches practising to one standard, whose real-world usage helps Body Recode develop the platform. Each Collective Partner runs their own coaching business on a branded instance of the platform, powered by Body Recode's engine and doctrine. Body Recode may license the platform to any number of partners, and Collective Partner status confers no market, territorial, or numerical exclusivity.

C. Partner is joining the Collective. Partner and Body Recode wish to record the terms on which Partner uses the platform and pays Body Recode.

D. This Agreement is accompanied by an IP Licence Deed dated the same date (**Licence Deed**). Both documents form one commercial package and must be signed together.

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## 02 AGREED TERMS

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### 03 1. DEFINITIONS

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In this Agreement, unless the context otherwise requires:

**Active Client** means a coaching client on Partner's Instance who, within any calendar month, has an active **paid** subscription, program, or paid coaching engagement with Partner. A person who is only on a free trial, a free or prospective intake, or who is otherwise not paying, is not an Active Client.

**Business Day** means a day other than a Saturday, Sunday, or public holiday in Brisbane, Queensland.

**Client Data** means all data relating to Partner's clients that is stored on, generated by, or processed through Partner's Instance.

**Commencement Date** means the date this Agreement is signed by both Parties, or such other date as recorded in Item 1 of Schedule 1.

**Doctrine** means the interpretation rules, safety floors, and clinical logic encoded in the Engine and its supporting documentation, as maintained and updated by Body Recode.

**Doctrine Mode A** means the operating mode where the Engine runs Body Recode's Doctrine without modification, branded under Partner's brand. Doctrine Mode A applies to all Collective Partners unless expressly changed in writing.

**Engine** means Body Recode's interpretation engine, comprising the algorithms, prompts, machine learning models, and Doctrine used to read a client's state and produce coaching direction. The Engine is Layer 1 IP under the Licence Deed and is not licensed except by API access under this Agreement.

**Fees** means the setup fee, subscription fee, and per-active-client fee set out in Schedule 1.

**Founding Rate** means the reduced setup fee and locked subscription rate offered to early Collective Partners, as recorded in Schedule 1.

**Hard Safety Floors** means the safety limits set out in Schedule 3 including but not limited to RRS clamps, Fat Map training limits, injury contraindications, and eligibility floors. Hard Safety Floors cannot be overridden by Partner.

**Instance** means the tenant-scoped instance of the Platform provisioned for Partner, including Partner's tenant configuration, branding, domain routing, and Client Data.

**Layer 1 IP** has the meaning given in the Licence Deed. In summary, it is the Engine and Doctrine.

**Layer 2 IP** has the meaning given in the Licence Deed. In summary, it is the coaching web application and its supporting infrastructure.

**Modality** means the training discipline within which Partner delivers coaching, being one of the Modalities defined in Schedule 4 (currently: strength / performance coaching, or yoga / movement).

**Partner Client** means a natural person who has entered into a coaching arrangement with Partner (whether paid or free) and interacts with Partner via the Instance.

**Platform** means the coaching web application operated by Body Recode, comprising Layer 2 IP and providing tenant-scoped access to the Engine via the API.

**Powered by Body Recode Mark** means the trade mark and lockup set out in Schedule 2 of the Licence Deed, which Partner must display as a subtle attribution in accordance with clause 5 of the Licence Deed.

**Term** has the meaning given in clause 4.

## 04 2. PACKAGE STRUCTURE

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2.1 This Agreement and the Licence Deed form one commercial package. Partner may not sign one without the other.

2.2 If there is any inconsistency between this Agreement and the Licence Deed: (a) on IP scope and use, the Licence Deed prevails; (b) on all other matters, this Agreement prevails.

## 05 3. COLLECTIVE PARTNER STATUS

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3.1 Body Recode grants Partner status as a Collective Partner in The Body Recode Collective.

3.2 Collective Partner status entitles Partner to: (a) the Founding Rate as recorded in Schedule 1; (b) a subscription rate that is locked for life at the founding rate, subject only to clause 6.7; (c) direct roadmap input, meaning Partner may participate in the quarterly product roadmap review; (d) first access to new features and modality packs before general release; and (e) mutual case study and marketing rights, meaning either Party may reference the other in case studies, testimonials, and marketing subject to prior written approval of the specific content.

3.3 Collective Partner status is personal to Partner. It does not transfer with a sale or assignment of Partner's business except with Body Recode's prior written consent.

3.4 The Founding Rate is offered at Body Recode's discretion and may be varied or withdrawn for future partners at any time. Any such change does not affect a rate already locked for an existing Collective Partner under clause 3.2(b). **For clarity, Body Recode may license the Platform to any number of partners.** Collective Partner status grants Partner no exclusivity of any kind, whether by territory, market segment, or number of participants.

## 06 4. TERM

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4.1 This Agreement commences on the Commencement Date and continues for an initial term of twelve (12) months (**Initial Term**).

4.2 On expiry of the Initial Term, this Agreement renews for successive rolling one (1) month periods (**Renewal Periods**) unless terminated in accordance with clause 14.

4.3 The Initial Term and any Renewal Periods together are the **Term**.

## 07 5. SERVICES

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5.1 During the Term, Body Recode will:

- a. provision the Instance under Partner's chosen domain and branding, per the Phase 2 Tenant Deployment Checklist;
- b. make the Platform available on a substantially continuous basis, subject to reasonable maintenance windows;
- c. provide Partner access to the Engine via the Platform API on a tenant-scoped basis;
- d. provide reasonable onboarding, training, and support (**Support**) as described in Schedule 2;
- e. release feature updates and modality pack updates to Partner on the same day (or earlier) as to partners on standard rates;
- f. maintain the Doctrine and Hard Safety Floors, notifying Partner in advance of material changes; and
- g. provide monthly reporting of Partner's Active Client count for billing purposes.

5.2 Body Recode will use commercially reasonable endeavours to make the Platform available with a target uptime of **99.5% per calendar month**, excluding scheduled maintenance (notified in advance) and events of force majeure. If uptime in a calendar month falls below the target, Partner's sole and

exclusive remedy is a **pro-rata credit** against the following month's subscription fee, proportionate to the shortfall below target. Body Recode does not otherwise warrant uninterrupted availability.

5.3 Support does not include: (a) coaching content advice or clinical judgement about a specific Partner Client; (b) marketing services or funnel copywriting (available as an optional add-on); (c) integrations Partner requests outside the platform's standard integration surface.

## 08 6. FEES

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6.1 Partner will pay Body Recode the Fees in accordance with Schedule 1.

6.2 The setup fee is non-refundable and, unless otherwise agreed in writing between the Parties, is payable in two equal instalments: **(a) 50% on the Commencement Date (on signing); and (b) 50% on Setup Completion.** **Setup Completion** means the date Body Recode makes the Instance available to Partner for use (go-live), having provided the setup services described in Schedule 2 (including Instance provisioning, tenant configuration, domain routing, modality pack activation, and delivery of handover documentation). Body Recode will invoice each instalment when it falls due, and Partner will pay it within seven (7) days of the invoice date. (Clause 14.4(e) governs any refund where Partner terminates for Body Recode's cause in the Initial Term.)

6.3 The monthly subscription fee is payable monthly in advance by direct debit or automatic card payment, invoiced on the Commencement Date and each subsequent monthly anniversary.

6.4 The per-Active-Client fee is calculated monthly in arrears based on Partner's Active Client count for the preceding calendar month, invoiced on the first Business Day of the following month, and payable within seven (7) days of the invoice date.

6.5 All Fees are in Australian Dollars and are exclusive of GST unless expressly stated. GST will be added at the prevailing rate and shown separately on tax invoices.

6.6 If Partner does not pay any invoice within seven (7) days of the due date, Body Recode may (a) charge interest at 2% above the Reserve Bank of Australia cash rate compounded daily; (b) after fourteen (14) days of continued non-payment, disable the creation of new Partner Clients on the Instance, while preserving Partner's and existing Partner Clients' access; and (c) after thirty (30) days of continued non-payment, suspend Partner's access to the Instance until arrears are paid. Body Recode will give Partner written notice before taking any step under (b) or (c).

6.7 The Founding Rate and locked subscription rate apply for the life of Partner's continuous participation in the Collective. If this Agreement terminates and Partner later re-enters, the applicable rate at re-entry is Body Recode's then-current standard rate, not the founding rate.

6.8 Partner is responsible for setting and collecting all fees payable by Partner's Clients to Partner. Partner's Client fees are not routed through Body Recode's Stripe account. Partner uses its own Stripe

Connect account or equivalent payment infrastructure.

## 09 7. PARTNER OBLIGATIONS

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7.1 During the Term, Partner will:

- a. run its Instance in Doctrine Mode A unless a change is expressly agreed in writing;
- b. not attempt to override or circumvent the Hard Safety Floors;
- c. maintain the professional and ethical standards reasonable for a coaching business in Partner's Modality, including maintaining current qualifications, insurances, and registrations where required by law;
- d. not offer coaching services on the Instance in any Modality other than the Modality recorded in Schedule 4;
- e. comply with all applicable laws in delivering coaching services, including the Health Practitioner Regulation National Law (where applicable), the Privacy Act 1988 (Cth), the Australian Consumer Law, and any applicable industry code;
- f. not use the Instance to deliver services that fall outside coaching, including medical diagnosis or treatment, mental health therapy, financial advice, or legal advice;
- g. hold and maintain appropriate professional indemnity insurance (minimum AUD \$5,000,000 per claim) and public liability insurance (minimum AUD \$10,000,000) for the duration of the Term;
- h. respond promptly to Partner Client complaints and inquiries; and
- i. provide Body Recode with reasonable operational data (excluding Partner Client identifying information beyond what is necessary) for billing, product development, and the Collective roadmap purposes.

7.2 Partner acknowledges that the Engine provides interpretation and coaching direction based on the Doctrine, and that Partner retains full prescriptive authority for the specific coaching direction delivered to any Partner Client. Partner is responsible for reviewing, editing, approving, and publishing all coaching plans, readings, and recommendations before they reach a Partner Client. The Engine's output is a starting point, not a final prescription.

## 10 8. PLATFORM ACCESS AND USE

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8.1 Body Recode will issue Partner with primary login credentials for the Instance. Partner may create sub-user accounts for Partner's employees, contractors, or agents (**Sub-Users**), subject to a maximum of three (3) Sub-Users at any time. Additional Sub-User seats are available by arrangement (see Schedule 2).

8.2 Partner is responsible for the acts and omissions of its Sub-Users as if they were Partner's own.

8.3 Partner will not: (a) permit any third party (other than Sub-Users) to access the Instance; (b) share credentials, screen shares, or session recordings that expose the Instance beyond Partner's authorised users; (c) probe, scan, or attempt to test the vulnerability of any part of the Platform; (d) reverse engineer, decompile, disassemble, or otherwise attempt to derive the source code of any part of the Platform, or any part of the Engine (as further restricted in the Licence Deed); (e) resell, sublicense, or make available access to the Platform or the Instance to any third party except as expressly permitted; or (f) use the Platform to provide services in competition with Body Recode's own coaching business (subject to clause 8.4).

8.4 Nothing in clause 8.3(f) prevents Partner from providing coaching services that overlap in subject matter with Body Recode's own coaching. Partner's business is coaching. Partner is expected to coach. The prohibition is on using the Platform infrastructure to compete with Body Recode's Platform-provision business (e.g. reselling the Platform).

## 11 9. DATA AND PRIVACY

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9.1 As between the Parties: (a) Partner is the primary controller of Client Data on Partner's Instance and is responsible to Partner Clients for the collection, use, storage, and disclosure of Client Data; (b) Body Recode acts as data processor in relation to Client Data, processing it only on Partner's documented instructions and for the purposes of providing the Services and the Engine.

9.2 Partner represents that: (a) Partner has a compliant privacy collection notice presented to Partner Clients at the point of collection; (b) Partner has valid consent (or another lawful basis) for the collection, use, and processing of Client Data via the Instance; and (c) Partner's privacy notice discloses that Client Data is processed on a third-party platform provided by Body Recode.

9.3 Body Recode will: (a) implement and maintain reasonable technical and organisational security measures for the Platform, including tenant-scoped isolation, encryption in transit, and role-based access controls; (b) notify Partner as soon as reasonably practicable and no later than seventy-two (72) hours after Body Recode becomes aware of any eligible data breach (as defined in the Privacy Act 1988 (Cth)) affecting Client Data on Partner's Instance; and (c) return or delete Client Data on termination in accordance with clause 15.

9.4 Body Recode may use aggregated, de-identified operational data from Partner's Instance for product improvement, Doctrine tuning, and the Collective roadmap analysis, provided no individual Partner Client can be identified. Body Recode will not use identifiable Client Data for its own marketing, sales, or coaching services to any other party.



## 12 10. INTELLECTUAL PROPERTY

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10.1 Intellectual property rights are governed by the Licence Deed.

10.2 In summary, and without limiting the Licence Deed: (a) Body Recode owns all Layer 1 IP and all Layer 2 IP, including the Platform, the Engine, the Doctrine, and all improvements to any of them; (b) Partner owns Partner's own brand, marks, marketing materials, coaching content authored by Partner, and Partner Client Data; (c) Partner is granted a limited licence to use Layer 2 IP as necessary to run its Instance during the Term; and (d) Partner is granted a limited API access licence to the Engine as necessary to receive interpretations for Partner Clients during the Term.

## 13 11. CONFIDENTIALITY

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11.1 Each Party will keep confidential all Confidential Information of the other Party disclosed under or in connection with this Agreement, and will use it only for the purposes contemplated by this Agreement.

11.2 **Confidential Information** includes but is not limited to: Body Recode's Doctrine, Engine algorithms, prompt libraries, technical architecture, pricing, roadmap; Partner's Client Data, coaching methodology, pricing, client lists; and the terms of this Agreement.

11.3 Confidential Information does not include information that: (a) is or becomes public through no breach; (b) was rightfully known to the receiving Party before disclosure; (c) is rightfully received from a third party without confidentiality restriction; or (d) is independently developed without use of the disclosing Party's Confidential Information.

11.4 The obligations in this clause survive termination for a period of five (5) years, except that trade secrets remain confidential in perpetuity.

## 14 12. WARRANTIES

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12.1 Each Party warrants that: (a) it has the full corporate power and authority to enter into and perform this Agreement; (b) execution and performance do not breach any other agreement, law, or duty to which the Party is subject; and (c) all information provided to the other Party in connection with this Agreement is true, accurate, and not misleading in any material respect.

12.2 Body Recode warrants that: (a) Body Recode has the right to grant the Licence Deed and provide the Services under this Agreement; (b) the Platform substantially conforms to its published documentation; and (c) Body Recode will exercise due care, skill, and diligence in providing the Services.

12.3 Partner warrants that: (a) Partner holds all licences, qualifications, and registrations required by law to deliver coaching services in Partner's Modality; (b) Partner has a compliant privacy notice and consent regime for Partner Client interactions on the Instance; and (c) Partner will not use the Platform or the Engine in a manner that would breach any law or infringe any third party's rights.

12.4 To the maximum extent permitted by law, all warranties, conditions, and terms not expressly set out in this Agreement are excluded.

## 15 13. LIABILITY

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13.1 To the maximum extent permitted by law: (a) neither Party is liable to the other for indirect, consequential, special, or incidental loss or damage, or for loss of profits, revenue, goodwill, or business opportunity, whether in contract, tort, statute, or otherwise; (b) each Party's total aggregate liability under or in connection with this Agreement is capped at the total Fees paid or payable by Partner to Body Recode in the twelve (12) months immediately preceding the event giving rise to the claim; and (c) if the event giving rise to the claim arises in the first twelve (12) months, the cap is calculated on annualised Fees.

13.2 The caps in clause 13.1 do not apply to: (a) breach of confidentiality; (b) breach of intellectual property obligations; (c) fraud or wilful misconduct; (d) liability for personal injury or death caused by negligence; or (e) any liability that cannot lawfully be limited.

13.3 Each Party will use reasonable endeavours to mitigate its losses.

13.4 Nothing in this Agreement limits, restricts, or modifies any right or remedy Partner may have under the Australian Consumer Law that cannot be lawfully excluded, restricted, or modified.

## 16 14. TERMINATION

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14.1 **Termination by Body Recode for cause.** Body Recode may terminate this Agreement immediately by written notice if: (a) Partner materially breaches this Agreement and does not remedy the breach within thirty (30) days of written notice; (b) Partner is subject to an insolvency event, including administration, receivership, liquidation, or the Personal Insolvency Agreement equivalent; (c) Partner uses the Instance to breach or circumvent the Hard Safety Floors, and does not immediately cease on written notice; (d) Partner is found to have committed misconduct that materially damages Body Recode's reputation; or (e) Partner is subject to a suspension or cancellation of a required professional registration or qualification.

14.2 **Termination by Partner for cause.** Partner may terminate this Agreement immediately by written notice if: (a) Body Recode materially breaches this Agreement and does not remedy the breach within

thirty (30) days of written notice; (b) Body Recode is subject to an insolvency event; or (c) Body Recode ceases to operate the Platform.

**14.3 Termination for convenience.** After the Initial Term, either Party may terminate this Agreement for convenience on sixty (60) days' written notice.

**14.4 Effect of termination.** On termination: (a) Partner's licence to use Layer 2 IP and the Engine (under the Licence Deed) ends; (b) Partner's access to the Instance is suspended after a wind-down period (see clause 15); (c) Body Recode will invoice, and Partner will pay, all Fees accrued to the effective date of termination; (d) any non-refundable amounts previously paid remain non-refundable; (e) if Body Recode has been terminated for cause by Partner, Body Recode will refund the pro-rata unused portion of the setup fee for the balance of the Initial Term; and (f) provisions that are expressed to survive, or that by their nature ought to survive, continue in force.

## 17 15. WIND-DOWN AND CLIENT HANDOVER

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**15.1** Body Recode will provide Partner with a wind-down period of forty-five (45) days from the effective date of termination (**Wind-Down Period**) during which Partner may: (a) continue to access the Instance in a read-only mode; (b) export Client Data in a machine-readable format (JSON, CSV); (c) communicate the transition to Partner Clients; (d) transition Partner Clients to another platform or continue coaching them offline; and (e) settle any outstanding Fees.

**15.2** During the Wind-Down Period, Body Recode may charge a wind-down subscription equal to fifty percent (50%) of the previously-applicable monthly subscription fee.

**15.3** At the end of the Wind-Down Period, Body Recode will: (a) delete or return all Client Data as directed by Partner; (b) delete or de-provision the Instance; and (c) revoke all Partner and Sub-User credentials.

**15.4** Body Recode will retain aggregated, de-identified operational data indefinitely for its own analytics and Doctrine tuning, consistent with clause 9.4.

**15.5** Body Recode will not, without Partner's prior written consent, directly market Body Recode's own coaching services to Partner Clients whose contact details Body Recode came to hold only as a result of processing Client Data. This restriction applies for twelve (12) months after termination.

## 18 16. DISPUTE RESOLUTION

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**16.1** If a dispute arises out of or in connection with this Agreement, the Parties will first attempt to resolve it by good faith negotiation between senior representatives, for a period of at least twenty (20) Business Days from written notice of the dispute.

16.2 If the dispute is not resolved by negotiation, the Parties will refer the dispute to mediation under the Resolution Institute Mediation Rules (or an equivalent recognised mediation body) before commencing court proceedings, except for urgent injunctive or interlocutory relief.

16.3 The Parties will share the costs of mediation equally unless the mediator directs otherwise.

## 19 17. GENERAL

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17.1 **Governing law.** This Agreement is governed by the laws of Queensland, Australia. Each Party submits to the exclusive jurisdiction of the Courts of Queensland.

17.2 **Entire agreement.** This Agreement, together with the Licence Deed and any Schedule, constitutes the entire agreement between the Parties and supersedes all prior representations, proposals, and understandings.

17.3 **Amendment.** No amendment is effective unless made in writing and signed by both Parties.

17.4 **Assignment.** Neither Party may assign this Agreement without the other's prior written consent (which must not be unreasonably withheld). Body Recode may assign or novate this Agreement to a successor entity acquiring Body Recode's business or to an affiliate, on written notice to Partner, provided the assignee agrees in writing to be bound by the same terms. The Founding Rate and locked subscription rate under clause 3.2 survive any such assignment or novation.

17.5 **Notices.** Notices must be in writing and served on a Party at the address (postal or email) set out at the head of this Agreement, or another address notified in writing. A notice by email is taken to be received when the sender's system reports successful delivery to the recipient's system.

17.6 **Force majeure.** Neither Party is liable for delay or failure to perform (other than payment obligations) caused by an event beyond that Party's reasonable control, provided the affected Party promptly notifies the other and uses reasonable endeavours to mitigate.

17.7 **Independent contractor.** The Parties are independent contractors. Nothing in this Agreement creates a partnership, joint venture, agency, employment, or fiduciary relationship.

17.8 **Severability.** If any provision is unenforceable, it is severed to the extent necessary without affecting the enforceability of the remainder.

17.9 **Waiver.** No waiver is effective unless in writing. A waiver on one occasion is not a waiver on any other occasion.

17.10 **Counterparts.** This Agreement may be signed in counterparts and by electronic signature.

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## 20 EXECUTION

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**Body Recode Pty Ltd** ACN [\_\_]

Signed by an authorised officer:

Name: Kade Dunstone Title: Director Signature: \_\_\_\_\_ Date:

\_\_\_\_\_

Witness: Name: \_\_\_\_\_ Signature: \_\_\_\_\_ Date:

\_\_\_\_\_

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**[Partner legal entity name]** ACN [\_\_]

Signed by an authorised officer:

Name: \_\_\_\_\_ Title: \_\_\_\_\_ Signature:

\_\_\_\_\_ Date: \_\_\_\_\_

Witness: Name: \_\_\_\_\_ Signature: \_\_\_\_\_ Date:

\_\_\_\_\_

## 21 SCHEDULE 1 — FEES AND FOUNDING RATE

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**Item 1: Commencement Date** [insert date]

**Item 2: Tier** [\_\_] Launch tier [\_\_] Studio tier

**Item 3: Founding Rate**

| LINE                                 | STANDARD RATE               | THE COLLECTIVE RATE (LOCKED FOR LIFE) |
|--------------------------------------|-----------------------------|---------------------------------------|
| Setup fee<br>(Launch tier, one-time) | AUD \$5,000                 | AUD \$2,500                           |
| Setup fee<br>(Studio tier, one-time) | AUD \$12,000                | AUD \$6,000                           |
| Platform subscription<br>(per month) | Launch \$400 / Studio \$600 | Locked at signed rate                 |
| Per Active Client (per month)        | AUD \$20                    | AUD \$20                              |

All amounts exclusive of GST. GST added at prevailing rate.

**Item 4: Payment method** Direct debit (BPAY, EFT) or automatic card payment. Details provided by Body Recode on Commencement Date.

**Setup fee payment schedule:** unless otherwise agreed in writing, the setup fee is paid **50% on signing (Commencement Date) and 50% on Setup Completion** (Instance go-live / handover), per clause 6.2. Subscription and per-Active-Client fees are billed as set out in clauses 6.3–6.4.

**Item 5: Modality of Instance** ☐ Strength / performance coaching ☐ Yoga / movement ☐ Other: ☐

## 22 SCHEDULE 2 — SERVICES

### Included in setup fee (one-time)

- Instance provisioning under Partner’s chosen subdomain or custom domain
- Tenant configuration seed (brand shell, coach identity, product wrapping)
- Domain routing setup
- Stripe Connect onboarding assistance (Partner provides Stripe account)
- Resend email domain configuration

- Modality pack activation (strength or yoga)
- Up to eight (8) hours of onboarding and training with Partner's key users
- Handover documentation

### Included in monthly subscription

- Platform hosting on production-grade infrastructure
- Engine API access with usage limits per Schedule 5
- Feature updates and modality pack updates
- Standard support (email, response within 2 Business Days)
- Priority support for the Collective (response within 1 Business Day)
- Monthly Active Client reporting
- Quarterly roadmap review participation

### Not included (available as optional add-ons at additional cost)

- Custom feature development
- Funnel copywriting or marketing content
- Client acquisition services
- Third-party integrations beyond the standard integration surface
- Additional Sub-User seats above the included limit

## 23 SCHEDULE 3 — HARD SAFETY FLOORS

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The following limits are enforced by the Engine and cannot be overridden by Partner:

1. **RRS (Recovery Regulation Signal) clamps** — session load and RRS scores below Engine-defined thresholds trigger mandatory deload or rest recommendations that cannot be bypassed.
2. **Fat Map training limits** — training volume and intensity ceilings based on the client's Fat Map zone.
3. **Injury contraindications** — exercise substitutions and program modifications required by declared injuries, per the Injury Substitution Matrix.
4. **Eligibility floors** — clients who fail the Lead Quality Filter or who present with disclosed contraindications (medication interactions, medical conditions) are gated from certain coaching pathways.
5. **Nutrition safety floors** — minimum calorie floors, protein floors, and appetite-suppression rule sets that apply automatically.

## 6. Doctrine language filters — banned client-facing terminology and doctrine version enforcement.

Body Recode reserves the right to update the Hard Safety Floors on notice to Partner. Updates that materially change Partner's obligations require at least thirty (30) days' notice.

## 24 SCHEDULE 4 — MODALITY

Partner is licensed to run the Instance in the following Modality:

| MODALITY                        | DESCRIPTION                                                                                                   | STATUS                 |
|---------------------------------|---------------------------------------------------------------------------------------------------------------|------------------------|
| Strength / performance coaching | The default modality: fat loss, strength, physique, body composition, RPE-based programming, Fat Map training | Built                  |
| Yoga / movement                 | Yoga and adjacent movement disciplines: breath, poses, flows, holds, recovery/regulation-first sequencing     | Built (feature branch) |
| Other                           | Modality packs not yet built                                                                                  | Not licensed           |

Change of Modality requires Body Recode's prior written consent and may attract an additional setup fee.

## 25 SCHEDULE 5 — ENGINE API USAGE LIMITS

Fair use limits, tuned monthly. Body Recode will notify Partner if usage patterns require escalation to a paid usage tier.



| METRIC                           | INCLUDED IN SUBSCRIPTION                 |
|----------------------------------|------------------------------------------|
| Foundational Reading generations | 3 per Active Client per month            |
| Program generations              | 4 per Active Client per month            |
| Nutrition plan generations       | 4 per Active Client per month            |
| Weekly Check-In feedback drafts  | Unlimited                                |
| Trajectory readings              | 1 per Active Client per block (~8 weeks) |
| API call volume (all endpoints)  | 10,000 calls per month per Active Client |

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## END OF COLLECTIVE PARTNER AGREEMENT — v0.1 DRAFT

Companion document: `PARTNER_IP_SUBLICENCE_DEED_v0.1.md`